

HOUSE BILL No. 1228

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-38-2.7-7.

Synopsis: Judicial immunity concerning electronic monitoring. Adds judges to the list of persons immune from civil liability for certain acts or omissions that occur in connection with the statute establishing electronic monitoring standards. (Current law provides that immunity does not apply to gross negligence or willful or wanton misconduct.)

Effective: July 1, 2026.

Jackson C

January 5, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1228

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-38-2.7-7, AS ADDED BY P.L.84-2022,
2 SECTION 16, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 7. (a) Except as described in subsection (b), the
4 following are immune from civil liability for an act or omission that
5 occurs in connection with the implementation of this chapter:

6 **(1) A judge who:**

7 **(A) oversees a case; or**

8 **(B) makes an order;**

9 **related to electronic monitoring.**

10 ~~(1)~~ **(2)** A supervising agency.

11 ~~(2)~~ **(3)** A law enforcement agency.

12 ~~(3)~~ **(4)** An employee of a person described in subdivisions (1)
13 through ~~(2)~~: **(3)**.

14 (b) The immunity described in subsection (a) does not apply if the
15 person committed gross negligence or willful or wanton misconduct.

